

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SARAH NADREAU,

Petitioner

VS.

NICHOLAS KARAMBATSAKIS,

Respondent

) Case Number: FDI-24-799263

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS, PLEASE SEE #7 FOR OTHER ORDERS
REQUESTED; REQUEST FOR ORDER RE ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Sarah Nadreau (Wife) married Respondent Nicholas Karambatsakis (Husband) on 8/4/2020. Wife contends the parties separated on 12/15/2023, for a marriage of 3 years and 4 months. Husband did not file a Response to the Petition and his position on the date of separation is unknown. The parties do not have minor children. Wife is represented by attorney Melissa Polk. Husband is represented by attorney Amrit Kullar.
- 2) On 11/20/2024, a Stipulated Judgment was entered which terminates the Court's jurisdiction to award spousal support to either party and divides the parties' community property. The Judgment also provides, "The Respondent (Nicholas) will spearhead the research and acquisition of a religious annulment through the Greek Orthodox Church. The Petitioner (Sarah) agrees to provide any or sign any pertinent documentation thereof (provided that all documentation is truthful and accurate). Both the Petitioner and Respondent will each share 50% of the financial burden for any legal or professional fees associated with the acquisition of this religious

annulment, up to \$485 or \$242.50 each. If the overall costs exceed the amount of \$485, the Respondent will cover the remainder without contribution from the Petitioner.”

Wife’s 5/19/2026 Request for Order

3) Now on for hearing is Wife’s Request for Order filed 5/19/2026. Wife states that although Husband has stated he has begun the process of obtaining an annulment through the Greek Orthodox Church, Husband refuses to provide documentation proving that he has started the process because the Judgment does not require him to do so. Wife asks the Court for orders for:

- a. An order that Nicholas, be ordered to comply with the *Judgment of Dissolution*, specifically Attachment FL-345 #7, requiring him to spearhead and complete the Greek Orthodox religious annulment of the parties’ marriage;
- b. An order that Nicholas be ordered to complete all necessary steps required to obtain the Greek Orthodox religious annulment within 60 days of the Court’s order;
- c. An order that Nicholas be ordered to provide me with verifiable written proof that the annulment has been completed, including official confirmation from the appropriate Greek Orthodox Church authority;
- d. An order that Nicholas be ordered to provide within 15 days, all documentation demonstrating the status of the annulment process, including but not limited to copies of applications submitted, proof of submission, receipts and invoices and any documents reflecting status and expected timeline;
- e. An order that Nicholas be ordered to pay my attorney’s fees and costs in the amount of \$5,000, pursuant to Family Code Section 271, 2030, and 2032 on his failure to comply with the *Judgment* and the necessity of bringing this motion.

4) On 5/15/2026, Wife’s attorney Melissa Polk filed a declaration stating that Wife has paid \$5,000 in attorney’s fees and costs to date to create the case file, review Wife’s documents, review the Judgment, advise Wife, and prepare the moving papers for Wife’s request.

5) On 5/15/2026, Wife filed a Memorandum of Points and Authorities citing Family Code sections 271 and 290, Code of Civil Procedure section 128(a), and supporting case law.

6) On 5/15/2026, Wife filed an Income and Expense Declaration. Wife states she is a Tenured Opera Chorister for the San Francisco Opera. Wife states she works 35 hours per week and earns \$8,087

1 per month. In later declarations, Wife states her work is seasonal and she only works nine months
2 out of the year for the opera. In her off months, she uses her savings and supplements her income
3 with teaching jobs. Wife states her estimated monthly expenses total \$4,287, of which \$1,000 is
4 paid by others. Wife states she has \$21,313 in cash savings and \$48,825 in personal property.
5 Wife states she owes \$47,362 in student debt. Wife states she has paid her attorney \$5,000 to date
6 using money loaned by a friend.

- 7 7) On 6/22/2026, Husband filed an Income and Expense Declaration. Husband states he works as a
8 Project Coordinator for Bonneville Labs, LLC. Husband states he works 40 hours per week and
9 earns \$7,083.33 per month. Husband states his monthly expenses total \$5,751, of which \$2,000 is
10 paid by others. Husband states he has \$192,910 in cash savings, \$229,490 in easily saleable
11 investments, and \$20,000 in personal property.
- 12 8) On 8/12/2026, Husband filed a Responsive Declaration asking the Court to deny all of Wife's
13 requests and grant him \$2,500 in Family Code section 271 attorney's fees sanctions. Husband
14 states he immediately began researching the process to obtain a Greek Orthodox annulment
15 following entry of the Judgment. Husband states he spoke to family members in Greece,
16 individuals familiar with the Greek legal and ecclesiastical systems, spoke with clergy members,
17 and pursued multiple avenues for locating counsel in Greece. Husband states it took him several
18 attempts to secure legal representation in Greece. Husband also states he does not speak Greek
19 fluently and so many communications had to be facilitated through family members. Husband
20 states he incurred \$3,515.70 to date associated with notarization services, apostilles, translations,
21 preparation of powers of attorney, attorney certifications, Greek administrative requirements,
22 court filings, and shipment of documents to Greece. Husband states that on 5/21/2026, the Court
23 of First Instance of Athens accepted the matter and has scheduled a hearing for 11/12/2026
24 concerning recognition of the parties' United States divorce. Husband states that once the hearing
25 date was confirmed, he "promptly" informed Wife. Husband attached to his Responsive
26 Declaration an email to Wife dated 6/8/2026 wherein he states, "I received notice from my
27 attorney in Greece that the court hearing for recognition of the U.S. divorce is scheduled for
28 November 12th. I've also been advised that it will likely take approximately 3-4 months after the
29 hearing for the judgment to be finalized, which is necessary before the church can proceed with

1 the annulment process. As mentioned in my earlier communications, I'll reach out again once that
2 step has been completed or if anything materially changes before then. Given the current timeline,
3 the next update will likely be in early 2027." Wife responds, "Can you please provide me with the
4 supporting documentation?" Husband also attached to his Responsive Declaration emails between
5 the parties dated 7/7/2025 through April 2026 discussing the annulment process, what Husband
6 had been doing to date, Wife's requests for documents showing Husband's progress, and
7 Husband's response on 4/2/2026 of, "I'm not refusing to share the receipts; I've already
8 confirmed that I will provide the relevant receipts once the progress is complete, in line with our
9 agreement and the timing of payment. There isn't a requirement for interim sharing of
10 documentation, so I'll continue with that approach and provide updates at the milestones
11 previously outlined. If anything time-sensitive comes up that requires your input, I'll reach out."
12 Husband also attached documents to his Responsive Declaration showing the steps he has taken
13 to date and the payments he has made to work on this issue.

14 9) On 8/12/2026, Husband's attorney Amrit Kullar filed a declaration arguing that Husband has
15 acted in good faith to comply with the Judgment.

16 10) On 8/12/2026, Husband's mother Maria Karambatsakis filed a declaration attesting to the efforts
17 Husband has taken to work on the annulment issue.

18 11) On 8/12/2026, Husband's psychiatrist Riana Chagoury-Leake, PsyD filed a declaration attesting
19 to the worry and emotional strain the process of obtaining an annulment has had on Husband.

20 12) On 8/12/2026, Husband filed a Memorandum of Points and Authorities.

21 Husband's 6/23/2026 Request for Order

22 13) Also on for hearing is Husband's Request for Order filed 6/23/2026 seeking \$10,000 in need-
23 based attorney's fees and costs under Family Code sections 2030 and 2032.

24 14) On 6/23/2026, Husband's attorney Amrit Kullar filed a declaration. Mr. Kullar states that
25 Husband has incurred \$3,366.50 in attorney's fees and costs thus far and anticipates Husband's
26 fees and costs will exceed \$10,000 to resolve the pending issues.

27 15) On 8/18/2026, Mr. Kullar filed an amended declaration stating Husband paid him a \$4,000
28 retainer and he continues to expect Husband's fees and costs will exceed \$10,000 to resolve the
29 pending issues.

1 16) On 8/20/2026, Wife filed a Responsive Declaration asking the Court to deny Husband's request
2 for need-based fees and an order requiring Husband to provide her with documentation showing
3 the steps he has taken to comply with the Judgment. Wife states that it is actually Husband who
4 has greater resources with which to pay legal fees.

5 17) On 8/20/2026, Wife filed a Memorandum of Points and Authorities.

6 18) On 9/1/2026, Husband filed a Reply Brief.

7 **B. Findings and Order**

8 1) Wife's request for an order that Husband be ordered to comply with the *Judgment of Dissolution*,
9 specifically Attachment FL-345 #7, requiring him to "spearhead and complete" the Greek
10 Orthodox religious annulment of the parties' marriage is denied. The Judgment requires Husband
11 to "spearhead the research and acquisition of a religious annulment." The Court finds that
12 Husband is already in compliance with this provision and is making good faith efforts to obtain a
13 Greek Orthodox religious annulment.

14 2) Wife's request for an order that Husband be ordered to complete all necessary steps required to
15 obtain the Greek Orthodox religious annulment within 60 days of the Court's order is denied. The
16 Court finds that Husband does not have complete control over when this process will be
17 completed.

18 3) Wife's request for an order that Husband be ordered to provide her with written proof that the
19 annulment has been completed, including official confirmation from the appropriate Greek
20 Orthodox Church authority, is granted, albeit with slight modifications as follows. Within 10 days
21 of the annulment process being completed (however that term is defined for Greek Orthodox
22 religious annulments), Husband shall promptly provide to Wife documentation proving that the
23 annulment has been completed.

24 4) Wife's request for an order that Husband be ordered to provide within 15 days, all documentation
25 demonstrating the status of the annulment process, including but not limited to copies of
26 applications submitted, proof of submission, receipts and invoices and any documents reflecting
27 status and expected timeline, is denied. The Court directs Wife to the documents attached to
28 Husband's Responsive Declaration filed 8/12/2026.

- 1 5) Wife's request for an order requiring Husband to pay Wife's attorney's fees and costs in the
2 amount of \$5,000, pursuant to Family Code Section 271, 2030, and 2032, based on his "failure to
3 comply with the *Judgment* and the necessity of bringing this motion" is denied. The Court does
4 not find good cause to award Wife attorney's fees sanctions under Family Code section 271. The
5 Court also does not find that the fees incurred by Wife were just, reasonable, and necessary, as
6 the Court finds that Husband did keep Wife reasonably updated regarding the steps he was taking
7 and the Judgment does not require him to provide documentary proof of his statements.
- 8 6) Husband's request for Family Code section 271 attorney's fees sanctions is similarly denied.
9 Although Husband was under no obligation to provide documentary proof of the steps he has
10 taken to obtain an annulment, Husband could easily have provided some documentation to
11 provide reassurances to Wife and his unwillingness to do so was not reasonable.
- 12 7) Husband's request for need-based attorney's fees is also denied. The Court does not find that
13 Wife has greater access to funds with which to pay legal fees.
- 14 8) Wife's attorney shall prepare the Findings and Order After Hearing.
- 15 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).
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